IN THE NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH (COURT – II)

Item No.101

C.P.(CAA)/22(CH)2022
(2nd Motion)

IN THE MATTER OF:

Adva Optical Networking India Pvt. Ltd. ...Transferor Company
And
Adva IT Solutions India Pvt. Ltd. …Transferee Company

Under Section: 230-232, CA, 2013

Order delivered on 12.01.2024

CORAM:
DR. PSN PRASAD,
HON'BLE MEMBER (J)

SHRI UMESH KUMAR SHUKLA
HON'BLE MEMBER (T)

PRESENT:

For the Petitioner- Companies	:	Mr. Shivam Narang, Advocate
For the Official Liquidator	:	Mr. Edward Augustine George, Advocate
For the Income Tax Department	:	Mr. Yogesh Putney, Senior Standing Counsel
For the Regional Director(RD(NR))	:	Ms. Susmithaa Selvaraj, Assistant Director

ORDER

The petitioner submissions could not be heard properly as the petitioner counsel has sought for a pass over to attend video conferencing. The counsel for the Income Tax Department is present and submitted that they have filed their report. Representative from RD Office is present and submitted that they have filed their report. Counsel for the Income Tax Department has further clarified that since the order was not uploaded, the petitioner counsel could not make a mention for transfer of the matter to Court No. 1. The petitioner

counsel may now take steps for mentioning the matter before Court No.1 on Monday or such other day, which is suitable to him. Let this matter tentatively posted after two weeks.

Let this matter be posted on 16.02.2024.

Sd/-
(DR. PSN PRASAD)
MEMBER (J)

Sd/-
(UMESH KUMAR SHUKLA)
MEMBER (T)

Mamta 12.01.2024.